

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 01/21/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-02393

CASE NAME: TOM SPIES VS. IRA HARRIS

*CASE MANAGEMENT CONFERENCE

FILED BY:

<u>*TENTATIVE RULING:*</u>
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This Case Management Conference (CMC) Trails the Motion for Preliminary Injunction, Line. 13, which is continued to February 11, 2026 at 9:00 a.m.. Counsel are ordered to appear remotely or in-person for the CMC on February 11, 2026. No appearance is required on January 21, 2026.

2. 9:00 AM CASE NUMBER: C23-01038

CASE NAME: DELVAN KITCHING VS. CARYN CASS

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) Trails the Discovery Motions, which were vacated on Lines 16, 17, 18. This CMC is vacated and continued to July 20, 2026 at 8:30 a.m. No appearance is required on January 21, 2026.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-00867

CASE NAME: STEPHEN STICKA VS. MARIA SANCHEZ

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Stephen Sticka's Motion for Leave to File First Amended Complaint ("Motion").

Plaintiff's motion is **granted** as discussed below.

Factual Allegations and Procedural Background

This matter pertains to a motor vehicle accident that occurred on May 17, 2021. According to the Complaint, on that date Plaintiff was stopped at a red light on Monument Boulevard crossing Oakmead Drive in Concord, California. When the light turned green, Plaintiff drove forward and entered the intersection. It is alleged that Defendant was driving along Oakmead Drive, ran the red light, and struck the rear passenger side of Plaintiff's vehicle. Defendant then fled the scene, speeding down Monument.

Plaintiff followed the fleeing vehicle but could not keep up. He did, however, call 911 as he followed and provided dispatch with the license plate number for the vehicle.

Plaintiff filed his complaint on April 17, 2023. On March 18, 2025, Defendants filed a motion for summary adjudication directed toward Plaintiff's prayer for punitive damages. On October 14, 2025, the Court issued an order granting Defendant's MSA.

Plaintiff contends that during discovery Defendant failed to timely provide complete responses to discover, so he filed a motion to compel. After the motion was granted, Defendant provided amended responses on July 16, 2025. It was only at this time that Plaintiff's counsel became aware of new facts which support a new cause of action, namely a negligence entrustment cause of action. There are also some additional factual allegations added to the intentional tort/intentional infliction of emotional distress cause of action, which remains from the original complaint. Plaintiff filed the instant motion to amend on December 9, 2025 – almost 5 months later.

Standard

Code of Civil Procedure § 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is "'inexcusable delay and probable